

25NWCV01967 25NWCV01967

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Case Number: 25NWCV01967 Hearing Date: August 4, 2026 Dept: C

RUBIO vs FORD MOTOR

COMPANY, et al.

CASE NO.: 25NWCV01967

HEARING: 8/4/26 @ 9:30 AM

#9

TENTATIVE RULING

Plaintiff Eric Rubio's Motion to Compel Further

Responses to Plaintiff's Request for Production of Documents, Set One, Nos. 16-18, 20-29, and 30 is DENIED in part as MOOT and GRANTED in part as set forth below.

No sanctions are imposed.

Moving Party to give NOTICE.

Plaintiff

Eric Rubio (Plaintiff) moves to compel further responses to Plaintiff's request for production of documents, set one, Nos. 16-18, 20-29, and 30 from Defendant Ford Motor Company (Defendant) pursuant to CCP § 2030.310.

In

Reply, Plaintiff indicates that Defendant's subsequent document production has rendered portions of the underlying motion moot. The remaining documents Plaintiff seeks are RAV Policies and Procedures and the CRC documents for the years 2020 through 2025 which were not included in Defendant's July 20, 2026 production. Additionally,

Plaintiff requests that the Court award sanctions incurred in bringing the motion, notwithstanding Defendant's belated compliance.

Background

This

is a lemon law case. On August 8, 2020, Plaintiff purchased a 2020 Ford Mustang (Vehicle). (Complaint, ¶ 16.) Plaintiff alleges during the warranty period, the Vehicle contained or developed defects and non-conformities which impaired the use of the Vehicle. (Complaint, ¶ 17.) Plaintiff provided Defendant and its representatives in this state sufficient opportunity to service or repair the Vehicle. Defendant and its representatives in this state were unable and/or failed to service or repair the Vehicle within a reasonable number of attempts. (Complaint, ¶ 18-21.)

Legal

Standard

CCP

§ 2031.310 allows a party to file a motion compelling further answers to document requests if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. The motion shall be accompanied with a meet and confer declaration. (CCP § 2031.310(b) (emphasis added).)

Discussion

As stated above, Defendant made a further production on July 20, 2026. However, Plaintiff still seeks RAV Policies and Procedures and the Customer Relationship Center (CRC) documents for the years 2020 through 2025.

In opposition, Defendant stated that the July 20, 2026 production in further response to Request Nos. 17 and 20-30, included policies and procedures for Ford's Customer Relationship Center ("CRC"), which handles communications from customers to Ford regarding vehicle concerns applicable to 2020 to the present; and its RAV Policy & Procedure Manual, which contains policy or procedure information about vehicle refunds and replacements, applicable to 2020 to the present. (Opp. p. 2: 13-20 (emphasis added).)

In Reply, Plaintiff argues that Defendant's document production remains incomplete because Defendant only produced documents from 2025. Plaintiff additionally argues that Defendant's responses are not code-compliant as to the attorney-client privilege objections because Defendant has failed to produce a privilege log or sufficient factual information to evaluate the merits of the claim.

The Court finds that, to the extent the July 20, 2026 production failed to include documents from 2020 to 2025, Defendant shall produce RAV Policies and Procedures and the Customer Relationship Center (CRC) documents for those years, as Defendant indicated it had done. (Opp. p. 2: 13-20 (emphasis added).)

As to the attorney-client objections, section 2031.240 (c)(1) provides that

If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

(Code Civ. Proc., § 2031.240.)

Ford's attorney-client privilege objection states: "Ford properly objected to Request Nos. 17 and 20-30 because these they seek "all" documents, training materials, or scripts and flow charts related to the subject of the Request. Given the breadth of these Requests, "all documents," may include communications between Ford and its attorneys, which are presumed to have been made in confidence and are broadly protected from discovery. [Citations.]" The Court finds that Plaintiff's request for "all documents" is overbroad. In this routine lemon law action, Defendant's response shall be limited to non-privileged documents.

Accordingly, Plaintiff's motion is DENIED in part as MOOT and GRANTED in part as set forth above.

Sanctions

The court shall impose a

monetary sanction against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demand for production of documents unless the party subject to the sanction acted with substantial justification or the sanction would otherwise be unjust.

(CCP § 2031.310(h).)

Plaintiff argues that sanctions against Defendant are warranted despite Defendant's supplemental response because "Defendant did not agree to proceed under the Los Angeles Superior Court's standard model protective order until after the motion had already been filed." (Reply, p. 14-15.) This unsupported assertion is contradicted by Defendant's sworn statement that it had offered to proceed under the model protective order on April 4, 2026, but Plaintiff did not sign it until June 30, 2026. (Eberle Decl., ¶¶ 9-10.) The instant motion was filed on April 28, 2026.

Plaintiff's request for sanctions is
DENIED.